

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

CITADEL SECURITIES LLC,

Plaintiff,

v.

CONSOLIDATED AUDIT TRAIL, LLC,
Defendant.

Case No. 1:26-cv-00134

**UNOPPOSED MOTION TO STAY DEFENDANT CONSOLIDATED AUDIT TRAIL,
LLC'S DEADLINE TO RESPOND TO PLAINTIFF CITADEL SECURITIES LLC'S
COMPLAINT**

Defendant Consolidated Audit Trail, LLC ("CAT LLC"), respectfully moves for a stay of the deadline to respond to the Complaint until the Court has ruled on Plaintiff Citadel Securities LLC ("Citadel")'s Motion for Preliminary Injunction. This motion is made without opposition from Citadel and for good cause, as set forth below:

1. On January 16, 2026, Citadel filed a Complaint against CAT LLC asserting a violation of the private nondelegation doctrine, ECF No. 1, as well as a Motion for Preliminary Injunction, ECF No. 5. CAT LLC's agent was served on January 20, 2026, making CAT LLC's response to the Complaint due on February 10, 2026. *See* Fed. R. Civ. P. 12(a)(1)(A).

2. On January 20, Citadel and CAT LLC agreed to a briefing schedule on the Motion for Preliminary Injunction, which the Court entered on January 21 by minute order. CAT LLC's deadline to file its Opposition to the Motion for Preliminary Injunction is January 30, 2026. Citadel's reply to CAT LLC's Opposition is due on February 9, 2026. And a Zoom hearing on the Motion for Preliminary Injunction is scheduled for February 19, 2026.

3. Good cause exists to extend the time for CAT LLC to respond to the Complaint.

4. CAT LLC's counsel has needed to dedicate time and resources in responding to

Citadel's preliminary-injunction motion on an expedited schedule and anticipates that it will continue to do so in advance of this Court's February 19 hearing on the preliminary injunction.

5. In addition, the Court's ruling on the preliminary injunction will inform the substance of the motion to dismiss that CAT LLC expects to file in response to the Complaint, and may narrow the issues that need to be addressed.

6. Staying the deadline to respond to the Complaint until the motion for a preliminary injunction is resolved will conserve party resources, improve the quality and focus of the arguments put before the Court, and help this litigation to proceed efficiently.

7. What's more, a stay of CAT LLC's deadline to file a responsive pleading will not prejudice Citadel, who is already receiving expedited review of its preliminary-injunction motion.

8. Citadel does not oppose the relief called for in this motion.

9. For the foregoing reasons, CAT LLC hereby respectfully requests that the Court stay CAT LLC's deadline to respond to Citadel's Complaint until the Court has ruled on Citadel's preliminary injunction motion. CAT LLC further requests that, following the resolution of Citadel's preliminary injunction motion, this Court, at its convenience, hold a status conference to establish a schedule on which the litigation should proceed.

10. A proposed Order has been filed with this motion.

Dated: January 29, 2026.

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(pro hac vice application pending)

Respectfully submitted,

/s/ Ian Heath Gershengorn

Ian Heath Gershengorn

Counsel of Record

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*Counsel for Defendant Consolidated Audit
Trail, LLC.*

CERTIFICATE OF CONFERENCE

In accordance with Local Rule 7.1, Defendant's counsel conferred with counsel for Plaintiff on January 28, 2026. Plaintiff's counsel has indicated that he is not opposed to this motion.

Dated: January 29, 2026.

Respectfully submitted,

/s/ Ian Heath Gershengorn

Ian Heath Gershengorn

CERTIFICATE OF SERVICE

I hereby certify that on January 29, 2026, I filed the foregoing document with the Clerk of Court for the U.S District Court for the District of Columbia using the court's CM/ECF system. I further certify that a copy of the foregoing and accompanying documents will be sent via email to the below:

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Dated: January 29, 2026.

Respectfully submitted,

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